

CORRESPONDENCE · 2 FEB 2002

Untruths

TYPE	DATE	PARTIES
Correspondence	2 Feb 2002	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

"Untruths" note — document in the Collorafi case file · 2 February 2002

Overview: argument note entitled "Untruths", which compares parts of the reasoning of the judgment of the Paris Court of Appeal of 8 March 2000 with the situation observed after McDonald's took over the restaurants.

Key points

The document quotes two passages from the judgment of 8 March 2000: on page 15, the finding that the experts Dumont and Martin concluded that Mr Collorafi managed the companies well, the report stressing that his management was no less good than that of the other franchisees; on page 18, the statement that Mr Collorafi had not lost any chance of seeing his companies return to profit within eighteen months. Against this reasoning, the note sets the fact that the company MAR, a McDonald's subsidiary which took over the three Antibes restaurant units, showed a profit of 475,000 francs as at 31 December 1999, that is, shortly before the publication of the judgment.

Significance

A document of challenge subsequent to the appeal judgment: it seeks to demonstrate, with the figures of the acquiring subsidiary in support, the viability of the restaurants and to feed the criticism of the decision, with a view to subsequent remedies.

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Source: bernardcollorafi.org/en/documents/note-untruths-collorafi-mcdonalds-subsidiary-mar-2002/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.